

Satendra Singh v. State of U.P. — theft recovery notice; hearing before EE; s.127

High Court of Judicature at Allahabad · Division Bench · 27 February 2020 · WRIT - C No. - 6676 of 2020 · WRIT - C No. - 6676 of 2020 · **Writ disposed; appear before EE for speaking order; s.127 if aggrieved.**

HEADNOTE

A consumer's writ to quash a theft-dues recovery notice of Rs. 6,18,186, alleged to have been issued without hearing and without following the U.P. Electricity Supply Code, 2005, was not decided on merits. The Court directed him to appear before the Executive Engineer with objections and evidence, required a speaking final order within four weeks, stayed coercive action for seven weeks, and left any challenge to that final order to an appeal under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Satendra Singh challenged before the Allahabad High Court a notice dated 19 September 2019 for realisation of Rs. 6,18,186 as electricity theft dues. He alleged that the electricity department was taking coercive recovery steps without granting a hearing and without following the U.P. Electricity Supply Code, 2005. Counsel for the petitioner and for the electricity department were heard and the record was perused.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

theft recovery notice: speaking final order then s.127 appeal

HOLDING

A writ against a theft-dues recovery notice is disposed by directing the consumer to appear before the Executive Engineer with objections and evidence; the Engineer shall pass a speaking and reasoned final order after considering those objections; coercive recovery is stayed for a limited period, automatically vacated on default; and if the consumer is aggrieved by the final order, the remedy is an appeal under Section 127 of the Electricity Act, 2003. Non-appearance on the date fixed revives the recovery citation. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127 After directing a speaking final order on the theft recovery notice, the Court left the consumer to a Section 127 appeal if aggrieved, without quashing the notice. ¶ 1

s127-appeal-lies-only-against-final-order-not-provisional-assessment The impugned instrument was a recovery notice/citation; the Court required the Executive Engineer to pass a final speaking order and then pointed to Section 127 against that final order. ¶ 1

relegation-to-section-127-appeal-on-merits-limitation-not-examined The theft assessment and alleged Supply Code non-compliance were not examined; Section 127 was reserved after the contemplated final order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE THEFT RECOVERY NOTICE COMPLIED WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

Raised by the petitioner; the Court directed a hearing and speaking order instead of deciding compliance. ¶ 1

NOT DECIDED — MERITS OF THE RS. 6,18,186 THEFT DUES

Left to the Executive Engineer's final order and, if needed, a Section 127 appeal. ¶ 1

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.